

Anil Dinanath Rane vs Aruna Anil Rane on 26 August, 1993

Equivalent citations: I(1994)DMC9

JUDGMENT

A P. Shah, J.

1.This appeal by the husband is directed against the dismissal of his petition for divorce under Section 13(1)(ia) of the Hindu Marriage Act, 1955.

2. The brief facts leading to the present litigation are as follows :--

The parties, both Hindus, were married on December 16, 1985 at Bombay as per Hindu vedic rites. At the time of marriage the appellant had no permanent job and he was working as television mechanic on daily basis. The respondent was, however, working as a Clerk-cum-Typist. After the marriage the couple started staying in one room tenement in Rule Building, Fanaswadi, Bombay. The couple was blessed with a male child in November, 1986. In or about March, 1987, the respondent lost her job. Since then it appears that quarrels started between the parties which finally culminated in an incident of 10th May, 1987 in respect of which the respondent filed a complaint to the police. On the next day, i.e. 11th May, 1987, the respondent went to her parents' house and has been staying there since then.

The present petition came to be filed by the appellant-husband on 30th November, 1986 claiming dissolution of marriage on the ground of mental cruelty under Section 13(1)(ia) of the Hindu Marriage Act, 1955.

The appellant's case in brief is as follows :--

That since after the marriage the respondent started pressing the appellant to purchase a self-contained flat by selling the existing premises and sending away his parents and to ask them to make their own arrangements elsewhere. The respondent was continuously quarrelling with appellant's parents and insulting them. On the day of naming ceremony of their child the respondent created a big scene because she was not allowed to buy a new saree of her choice. She refused to wear the saree brought by her mother-in-law and threw away that saree and threatened that if she was forced to wear it, she would set fire to herself and would implicate the petitioner and his mother. Then on the next day of the said ceremony the respondent went to her parental house along with the child. After some days, the appellant want to see the respondent and the child but at that time she again quarrelled with him and threatened to kill herself and the child. The respondent returned to the matrimonial

house with the child in February, 1987, but the situation did not improve. The respondent was constantly quarrelling, threatening and insulting the appellant. On 10th May, 1987, the respondent's mother, brother and her brother's wife came to the house of the appellant. They abused the appellant and his mother and also gave threats to them and thereafter they lodged a false complaint against the appellant and his mother. In short, the quarrelsome nature of the respondent and the specific instances of giving threats of suicide and filing of a false complaint to the police, according to the appellant, amounted to causing mental cruelty to him and his family members.

As far as written statement is concerned, the respondent denied all the allegations made by the appellant and contended that, as a matter of fact, there was no illtreatment to the appellant at her hands. On the contrary, the appellant and his mother and more particularly his mother ill-treated her after she lost the job and she was out of employment. The respondent complained that she was treated like a maid-servant and before the incident of 10th May, 1987, she was not given food for nearly 3 days. Therefore, she had sent intimation to her mother and sister. On receiving the information about illtreatment given to respondent, her mother, her sister and sister's husband came to their house to enquire about the harassment caused to the respondent. At that time, according to the respondent, the appellant and his mother abused and insulted her relations and after they went away she was assaulted and under those circumstances, she was compelled to approach the police. Even at the Police Station when the police had asked her to lodge a complaint against her husband and mother-in-law, she declined to do so because she did not intend to break her matrimonial ties. The respondent claimed that she made sincere efforts to see that she is accepted by the appellant, but all those attempts have failed. The respondent lastly contended that the appellant is trying to take advantage of his own wrong.

Before the Family Court, the parties led evidence which consist mainly of oral evidence. The appellant examined himself and his mother and his aunt Vaishali Yevale. The respondent examined herself and 3 other witnesses. The complaints filed by the parties to the police are also produced on record. The Family Court disbelieved the appellant's story that the respondent started quarrelling with the appellant and his mother as she wanted to stay separately. The Family Court also found that the alleged incident at the naming ceremony was highly exaggerated and all that happened was a petty quarrel between the respondent and her mother-in-law on account of purchasing a new saree. The Family Court also recorded a finding that the respondent was deliberately harassed by the appellant and her mother-in-law after she lost her job in March, 1987. The Family Court found the case of the respondent that she was starved for nearly 3 days by her mother-in-law to be truthful. The Family Court, therefore, held that the appellant has failed to prove the ground under Section 13(1)(ia) of the Hindu Marriage Act. The appellant's claim for the custody of the minor child Rohan was also rejected by the Family Court.

3. Mrs. Mutalik, learned Counsel for the appellant submits that the husband has proved the acts of mental cruelty and as such the petition is liable to be decreed. She mainly relies upon the conduct of the respondent in repeatedly giving threats of committing suicide and she took us through the evidence of the appellant and his mother aunt in support of his case that by giving such threats time and again the respondent has caused mental cruelty to the appellant. So also our attention was drawn to the evidence relating to incident dated 10th May, 1987 and particularly the conduct of the respondent in filing the police complaint in support of the case that the respondent was guilty of committing acts of mental cruelty. Mr. Shah, learned Counsel for the respondent, counters the submissions of Mrs. Mutalik by contending that the appellant is actually the guilty party. The appellant and his mother have illtreated the respondent because due to her misfortune, she lost her job. Mr. Shah contends that there is no cruelty on the part of the respondent and the Family Court was right in refusing to grant any relief to the appellant.

4. On a careful scrutiny of the deposition of the parties, we find no substance in the allegation of the husband that soon after the marriage the wife started quarrelling as she wanted to have a separate residence. Prior to getting married with the appellant, the respondent was aware that the appellant was staying in one room tenement and it is highly improbable that immediately after the marriage she would start demanding a separate residence although admittedly the appellant was without any job at that time. The complaint filed by the husband as late as on 25th March, 1987 also belies the case of the appellant. In the complaint, there is no reference to any demand on the part of the respondent-wife for a separate residence. In fact, the husband said in the complaint that it is not known as to why she is quarrelling with the appellant and his family members. In any event, we do not think that allegations of this general nature are sufficient to establish mental cruelty within the parameters of Section 13(1)(ia) of the Hindu Marriage Act, 1955. We are also in agreement with the Family Court that the incident at the naming ceremony of the son Rohan was only a petty quarrel on account of minor differences between the wife and the mother-in-law. We may mention that after the alleged incident of 10th December, 1986, the parties were living together and cohabiting till 10th May, 1987. In these circumstances, it is not possible to accept the case of the husband that the behaviour of the respondent at the time of naming ceremony caused him mental cruelty.

5. Turning now to the allegation that the wife threatened to commit suicide and kill her child when the appellant had gone to her parents' residence to take her back after the naming ceremony, it is seen that the cross-examination of the appellant has completely falsified the case. During his cross-examination, the appellant has stated as follows :--

"It is true that I had gone to Vasai in order to bring Aruna and Rohan from her parental house and at that time I requested Aruna to take cradle with us, as we had no cradle. It is true that from her parental house we came to Vasai Station along with cradle in a rickshaw and at Vasai Railway Station I purchased tickets for Aruna and mother and asked them to take seat in the train, but I myself did not board the train. It is also true that I did not come by that train or subsequent train along with the cradle. It is true that I didn't go to my house not only on that day, but also for couple of days to my house at Phanaswadi. It is true that as I didn't go home, my mother had troubled Aruna and has tortured her."

The evidence of the appellant shows that there were no threats by the respondent. On the other hand, the appellant apprehended that his mother would create trouble for the respondent after she goes back.

6. Mrs. Mutalik's main plank of argument is, however, based upon the incident of 10th May, 1987. There is no dispute that prior to this incident, there was some tension in the house. The fact that the respondent did not take food for 2 to 3 days is not disputed. The version of the appellant's mother is that she refused to take food while the respondent claims that she was deliberately kept starved. On a perusal of the evidence of the parties, we find that the relations of the respondent had gone to the appellant's house because of the illtreatment given to the respondent by her mother-in-law. It appears that there was a quarrel at that time. The respondent, in these circumstances, compelled to go to the Police Station and, therefore, the appellant and her mother were summoned by the police. It may be noted that the respondent refused to register any complaint against the appellant to avoid further complications. She has stated in her evidence that she wanted to go back to her husband and, therefore, she refused to lodge any complaint although she was called upon to do so by the police. Having regard to these facts, it is difficult to hold that the respondent has caused mental cruelty to the appellant and his mother by approaching the police station.

7. It appears that till March, 1987 there was no problem in the family. The disputes started only after the respondent lost her job. We do not find any evidence worth mentioning to establish the charge of cruelty. The Family Court has correctly appreciated the evidence on record and there is no reason to interfere with the well reasoned findings of the Family Court.

8. The appeal must, therefore, fail and the same is dismissed, but there will be no order as to costs.